

26TRCV02274 26TRCV02274

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-08-31

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SBA%2CB%2C08%2F31%2F2026

Source SHA-256: 8312ef2114d1e16820272d5f854b49f560ecefff91d8e6556781fea9a5fb5af6

Case Number: 26TRCV02274 Hearing Date: August 31, 2026 Dept: B

Moving Parties: Defendants KND Development

53, L.L.C. dba Kindred Hospital South Bay, Kindred Healthcare Operating, LLC,
and Michael Kerr

Responding

Party: None

Motion to Compel

Arbitration and Stay Action

The Court considered the moving papers. No opposition was filed.

RULING

The motion is GRANTED and the action is STAYED.

BACKGROUND

On June 23, 2026, Susan Virginia Hines, by and through her successor in interest, Atiya Thompson, and Atiya Thompson filed a complaint against defendants Knd Development 53, L.L.C. dba Kindred Hospital South Bay, Kindred Healthcare Operating, LLC, and Michael Kerr for elder abuse and wrongful death.

LEGAL

AUTHORITY

Under

CCP § 1281, a “written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and revocable, save upon such grounds as

exist for the
revocation of any contract.”

Under

CCP § 1281.2, “On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: . . . (c) A party to the arbitration agreement is also a party to a pending court action . . . with a third party, arising out of the same transaction or series of related transactions and there is a possibility of conflicting rulings on a common issue of law or fact. . . . (d) If the court determines that a party to the arbitration is also a party to litigation in a pending court action . . . with a third party as set forth under subdivision (c) herein, the court (1) may refuse to enforce the arbitration agreement . . . ; (2) may order intervention or joinder as to all or only certain issues; (3) may order arbitration among the parties who have agreed to arbitration and stay the pending court action . . . pending the outcome of arbitration proceeding; or (4) may stay arbitration pending the outcome of the court action or special proceeding.”

DISCUSSION

Defendants request an order
compelling arbitration and staying this action.

Existence of an agreement to
arbitrate

Under

CCP §1281.2, the party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. “With respect to the moving party's burden to provide evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court.” See *Condee v. Longwood Management Corp.*

(2001) 88 Cal. App. 4th 215, 218; see also Cal. Rules of Court, rule 3.1330. Once such a document is presented to the court, the burden shifts to the party opposing the motion to compel, who may present any challenges to the enforcement of the agreement and evidence in support of those challenges.” Baker v. Italian Maple Holdings, LLC (2017) 13 Cal. App. 5th 1152, 1160 (citation omitted).

“The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence However, the burden of production may shift in a three-step process. First, the moving party bears the burden of producing ‘prima facie evidence of a written agreement to arbitrate the controversy.’ The moving party ‘can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party’s] signature.’ . . . For this step, ‘it is not necessary to follow the normal procedures of document authentication.’ If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion. If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement. The opposing party can do this in several ways. For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement. . . . If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” Gamboa v. Northeast Community Clinic (2021) 72 Cal. App. 5th 158, 165 (citations omitted).

Defendants present evidence that Atiya Thompson, as legal representative, signed a Voluntary Alternative Dispute Resolution Agreement on November 14, 2025. It states in part: “It is understood that any dispute as to medical malpractice, that is as to whether any medical services rendered under this contract were unnecessary or unauthorized, or were improperly, negligently or incompetently rendered, will be determined by submission to arbitration as provided by California law, and not by a lawsuit or resort to

court process” Allison Friedman
decl., Exh. A.

The Court finds that an arbitration agreement exists
between the parties.

Scope

The agreement states
that, “[i]n addition to covering the kinds of claims referred to in Articles I
and II, this ADR agreement applies to any legal claim or civil action arising
out of or relating to your hospitalization, outpatient service, or any service
rendered under Kindred’s Admission Agreement, which is incorporated by
reference (e.g. claims for . . . elder abuse, . . .). This includes claims or
actions against the hospital, its employees, agents, directors, or any parent
subsidiary, or affiliate of the hospital and/or the Hospital’s Medical
Director(s) in his capacity as Medical Director. This ADR agreement also covers any claim or
action brought by a party other than you (e.g. an action by your spouse, legal
representative, agent, heir) arising out of or relating to your hospitalization
or outpatient service against the hospital or its employees.”

The Court finds that the scope of the agreement
covers plaintiffs’ claims for elder abuse and wrongful death.

The motion is GRANTED.

ORDER

The
motion is GRANTED and the action is STAYED.

Defendants
are to give notice of ruling.